ADMINISTRATIVE AND LEGAL REQUIREMENTS DOCUMENT (ALRD)



U.S. Department of Energy
Office of Energy Efficiency and Renewable Energy

Issue Date: December 2018

Weatherization Assistance Program

Program Year 2019 Formula Grants

WAP-ALRD-2019

CFDA Number: 81.042 Weatherization Assistance for Low-Income Persons

WAP Program Year Ending	**Application Due Date**
March 31, 2019	February 21, 2019
June 30, 2019	May 3, 2019

The complete application package will be due no later than 12:00 pm Local Time of each Grantee on the due dates above, in accordance with each Grantee's program year. To ensure timely processing of awards, Grantees must submit complete Applications by the above deadlines.

REGISTRATION/SUBMISSION REQUIREMENTS

Registration Requirements: Allow at least 21 days to complete registrations.

If you haven't registered, there are several one-time actions you must complete in order to receive an award under this ALRD:

1. Obtain a Dun and Bradstreet Data Universal Numbering System (DUNS) number at http://fedgov.dnb.com/webform. Subawardees at all tiers must obtain DUNS numbers and provide the DUNS to the prime awardee before the subaward can be issued. For questions, email govt@dnb.com.

2. Register in the System for Award Management (SAM) at https://sam.gov/. Applicants who are not registered with SAM should allow several days to complete this requirement. It is suggested that the process be started as soon as possible. **Prime awardees must update their SAM registration annually.** Please ensure that the organizational name in SAM matches what is listed in the Annual File. Also, prime awardees and subrecipients must check the excluded parties listing for their subawards. For questions, call 866-606-8220 or 334-206-7828.

3. Register in FedConnect to receive and acknowledge your award at https://www.fedconnect.net/. See the Quick Start Guide at https://www.fedconnect.net/FedConnect/Marketing/Documents/FedConnect_Ready_Set_Go.pdf.

   Acknowledgement of award documents by the Grantee's authorized representative through FedConnect, constitutes the Grantee's acceptance of the terms and conditions of the award and constitutes the Grantee's electronic signature.

   For additional questions, email support@fedconnect.net or call 1-800-899-6665.

   IMPORTANT: The electronically signed Assistance Agreement and attached award documents in FedConnect is the formal authorization and approval from the Contracting Officer. Grantees may not rely on the Performance and Accountability for Grants in Energy (PAGE) as the formal authorization and approval. Award documents in the initial award and any modifications to the award must be reviewed and acknowledged by the Grantee in FedConnect.

4. Have a Login for PAGE at https://www.page.energy.gov/default.aspx in order to submit your application. For questions regarding PAGE, refer to the Help Menu in PAGE or contact the PAGE hotline at PAGE-Hotline@ee.doe.gov or 1-866-492-4546.

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PART I AUTHORITY

Title IV of the Energy Conservation and Production Act, as amended, authorizes the U.S Department of Energy (DOE) to administer the Low-Income Weatherization Assistance Program (WAP). All grant awards made under this program shall comply with applicable laws and regulations, including but not limited to the regulations contained in 2 CFR 200 and 10 CFR 440 and other policies and procedures as DOE may, from time-to-time, prescribe for the administration of financial assistance.

PART II AWARD INFORMATION

A. TYPE OF AWARD INSTRUMENT

DOE will award grants for this funding.

B. ESTIMATED FUNDING

Availability of Funds: Funding for all awards and future budget periods is contingent upon the availability of funds appropriated by Congress for the purpose of this program and the availability of future-year budget authority.

The Grantee shall administer DOE funds received under the WAP in accordance with Federal rules and regulations and State policies and procedures. The Grantee is to manage Federal Funds in a prudent, effective and efficient manner to accomplish program objectives. Grantees shall take the necessary steps to ensure that funds are expended within the grant project period.

Funding Level: Please see WPN 19-2, Program Year 2019 Grantee Allocations

C. PERIOD OF PERFORMANCE

This is the third and final year of a project period that started in Fiscal Year 2017 and is anticipated to be comprised of three annual budget periods, contingent on availability of funds.

PART III ELIGIBILITY INFORMATION

A. ELIGIBLE APPLICANTS

In accordance with 2 CFR 910.126 (b) DOE Program Rule 10 CFR 440, Weatherization Assistance Program for Low-Income Persons, eligibility for awards are restricted to all fifty states, the District of Columbia, and the U.S. Territories. Indian Tribes and local applicants may apply if deemed to meet the requirements of 10 CFR 440.11 and 10 CFR 440.13 respectively by the Program Manager.

B. COST MATCHING

Cost matching is not required.

PART IV APPLICATION AND SUBMISSION INFORMATION

A. CONTENT AND FORM OF APPLICATION

The State Plan Application must be submitted online via the PAGE system at https://www.page.energy.gov/default.aspx. Please see the Application Instructions. It is the responsibility of the Grantee to verify successful transmission. DOE reserves the right to request additional or clarifying information for any reason deemed necessary. Applications will be reviewed for consistency with the WAP program objectives. Please note that tables or spreadsheets shall be submitted as PDF attachments to the SF-424 Application and shall not be pasted within the Annual File, Master File, or Budget Comments in PAGE.

PART V AWARD ADMINISTRATION INFORMATION

A. AWARD DOCUMENTS

An Assistance Agreement issued by the Contracting Officer is the authorizing award document. The Assistance Agreement normally includes, either as an attachment or by reference: (1) Special Terms and Conditions; (2) Program regulations 10 CFR 440; (3) Application as approved by DOE; (4) DOE assistance regulations at 2 CFR 200; (5) National Policy Assurances To Be Incorporated As Award Terms; (6) Annual File; (7) Master File; (8) Budget Information; and (9) Federal Assistance Reporting Checklist, which identifies the Reporting Requirements.

B. FUNDING RESTRICTIONS

Cost Principles. Costs must be allowable, allocable and reasonable in accordance with the applicable Federal cost principles referenced in 2 CFR 200. The cost principles for commercial organizations are in Federal Acquisition Regulation (FAR) Part 31.

C. REPORTING

Reporting requirements are identified on the Federal Assistance Reporting Checklist, DOE F 4600.2, attached to the award agreement.

D. ADMINISTRATIVE AND NATIONAL POLICY REQUIREMENTS

1. Administrative Requirements

- The administrative requirements for DOE grant awards are contained in:
  - 2 CFR 200 and 10 CFR 440 (See: Electronic Code of Federal Regulations at www.ecfr.gov).
  - 2 CFR, Part 25 – Universal Identifier and Central Contractor Registration
  - 2 CFR, Part 170 – Reporting Subaward and Executive Compensation Information to comply with the Federal Funding and Transparency Act of 2006 (FFATA). Additional information regarding FFATA is found at https://www.fsrs.gov.

2. National Policy Requirements

The National Policy Assurances To Be Incorporated As Award Terms are located at http://energy.gov/management/office-management/operational-management/financial-assistance/financial-assistance-forms.

Intellectual Property Provisions. The standard DOE financial assistance intellectual property provisions applicable to the various types of recipients are located at http://energy.gov/gc/standard-intellectual-property-ip-provisions-financial-assistance-awards.

3. Environmental Review in Accordance with National Environmental Policy Act (NEPA)

EERE's decision whether and how to distribute federal funds is subject to the National Environmental Policy Act (42 USC 4321, *et seq.*). NEPA requires Federal agencies to integrate environmental values into their decision-making processes by considering the potential environmental impacts of their proposed actions. For additional background on NEPA, please see DOE's NEPA website at http://nepa.energy.gov/. DOE has developed a list of activities that are categorically excluded from further NEPA review. Additional detail on NEPA requirements may be found in Weatherization Program Notice 19-1 section 2.8 beginning on page 5. Historic preservation executed programmatic agreements can be found at: https://www.energy.gov/eere/wipo/historic-preservation-executed-programmatic-agreements

PART VI QUESTIONS/AGENCY CONTACTS

A. QUESTIONS

Questions and comments concerning this document shall be submitted not later than 10 calendar days prior to the application due date. Questions submitted after that date may not allow sufficient time to respond.

All questions regarding this announcement must be submitted to the contact identified below. Questions regarding the specific application submission must be submitted to the Project Officer for your Organization. For questions regarding DOE Project Officer Assignments, please contact Michael Peterson at the email address below.

B. AGENCY CONTACT

Name: Michael Peterson, DOE Project Officer
E-Mail: michael.peterson@ee.doe.gov

PART VII OTHER INFORMATION

A. INTERGOVERNMENTAL REVIEW

Program Subject to Executive Order 12372

This program is subject to Executive Order 12372 (Intergovernmental Review of Federal Programs) and the regulations at 10 CFR Part 1005.

One of the objectives of the Executive Order is to foster an intergovernmental partnership and a strengthened federalism. The Executive Order relies on processes developed by State and local governments for coordination and review of proposed Federal financial assistance.

Applicants should contact the appropriate State Single Point of Contact (SPOC) to find out about, and to comply with, the State's process under Executive Order 12372. The names and addresses of the SPOCs are listed on the website of the Office of Management and Budget at https://www.whitehouse.gov/wp-content/uploads/2017/11/SPOC-Feb.-2018.pdf.

B. GOVERNMENT RIGHT TO REJECT OR NEGOTIATE

DOE reserves the right, without qualification, to reject any or all applications received in response to this ALRD and to select any application, in whole or in part, as a basis for negotiation and/or award.

C. COMMITMENT OF PUBLIC FUNDS

The Contracting Officer is the only individual who can make awards or commit the Government to the expenditure of public funds. A commitment by anyone other than the Contracting Officer, either explicit or implied, is invalid.

D. LOBBYING RESTRICTIONS

By accepting funds under this award, you agree that none of the funds obligated on the award shall be expended, directly or indirectly, to influence congressional action on any legislation or appropriation matters pending before Congress, other than to communicate to Members of Congress as described in 18 U.S.C. 1913. This restriction is in addition to those prescribed elsewhere in statute and regulation.

E. MODIFICATIONS

Modifications to this ALRD will be processed and disseminated in the same manner as other Weatherization Program Notices.

F. PROPRIETARY APPLICATION INFORMATION

DOE will use data and other information contained in applications strictly for evaluation purposes. Applicants should not include confidential, proprietary, or privileged information in their applications unless such information is necessary to convey an understanding of the proposed project.

Applications containing confidential, proprietary, or privileged information must be marked as described below. Failure to comply with these marking requirements may result in the disclosure of the unmarked information under the Freedom of Information Act or otherwise. The U.S. Government is not liable for the disclosure or use of unmarked information, and may use or disclose such information for any purpose.

The cover sheet of the application must be marked as follows and identify the specific pages containing confidential, proprietary, or privileged information:

> Notice of Restriction on Disclosure and Use of Data:
> Pages [list applicable pages] of this document may contain trade secrets or commercial or financial information that is privileged or confidential, and is exempt from public disclosure. Such information shall be used or disclosed only for evaluation purposes or in accordance with a financial assistance or loan agreement between the submitter and the Government. The Government may use or disclose any information that is not appropriately marked or otherwise restricted, regardless of source. [End of Notice]

The header and footer of every page that contains trade secrets or commercial or financial information that is privileged must be marked as follows: “May contain trade secrets or commercial or financial information that is privileged or confidential and exempt from public disclosure.”

In addition, each line or paragraph containing trade secrets or commercial or financial information that is privileged or confidential must be enclosed in brackets.

The above markings enable EERE to follow the provisions of 10 CFR 1004.11(d) in the event a Freedom of Information Act (FOIA) request is received for information submitted with an application. Failure to comply with these marking requirements may result in the disclosure of the unmarked information under a FOIA request or otherwise. The U.S. Government is not liable for the disclosure or use of unmarked information, and may use or disclose such information for any purpose.

Please be aware that all information provided to DOE (including confidential proprietary or confidential commercial information) is subject to public release under the Freedom of Information Act (FOIA). (5 U.S.C. § 552(a)(3)(A) (2006), amended by OPEN Government Act of 2007, Pub. L. No. 110175, 121 Stat. 2524). When a FOIA request covers information submitted to DOE by an applicant, and the cognizant DOE FOIA Officer cannot make an independent determination regarding public release of this information, the cognizant DOE FOIA Officer will contact the submitter and ask for comment regarding the redaction of information under one or more of the nine FOIA exemptions. The cognizant DOE FOIA Officer will make the final decision regarding FOIA redactions. Submitters are given a minimum of 7 days to provide redaction comments. If DOE disagrees with the submitter's comment, DOE will notify the submitter of the intended public release no less than seven (7) days prior to the public disclosure of the information in question (10 CFR Part 1004.11).

G. PROTECTED PERSONALLY IDENTIFIABLE INFORMATION

In responding to this ALRD Applicants must ensure that Protected Personally Identifiable Information (PII) is not included. PII is defined by the Office of Management and Budget (OMB) and DOE as:

Any information about an individual maintained by an agency, including but not limited to, education, financial transactions, medical history, and criminal or employment history and information that can be used to distinguish or trace an individual's identity, such as their name, social security number, date and place of birth, mother's maiden name, biometric records, etc., including any other personal information that is linked or linkable to an individual.

This definition of PII can be further defined as: (1) Public PII and (2) Protected PII.

Public PII: PII found in public sources such as telephone books, public websites, business cards, university listing, etc. Public PII includes first and last name, address, work telephone number, email address, home telephone number, and general education credentials.

Listed below are examples of Protected PII that Applicants must not include.

- Social Security Numbers in any form
- Place of Birth associated with an individual
- Date of Birth associated with an individual
- Mother's maiden name associated with an individual
- Biometric record associated with an individual
- Fingerprint
- Iris scan
- DNA
- Medical history information associated with an individual
- Medical conditions, including history of disease
- Metric information, e.g. weight, height, blood pressure
- Criminal history associated with an individual
- Employment history and other employment information associated with an individual
- Ratings
- Disciplinary actions

- Performance elements and standards (or work expectations) are PII when they are so intertwined with performance appraisals that their disclosure would reveal an individual's performance appraisal
- Financial information associated with an individual
- Credit card numbers
- Bank account numbers
- Security clearance history or related information (not including actual clearances held)

PART VIII REFERENCE MATERIAL

A. REFERENCE MATERIAL

WPN 19-1, Program Year 2019 Weatherization Grant Guidance

WPN 19-2, Program Year 2019 Grantee Allocations

Application Instructions (December 2018)